

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PKDC, LLC, *Complainant*

v.

COSCO SHIPPING LINES CO., LTD., *Respondent*.

DOCKET NO. 25-07

Served: September 5, 2025

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER GRANTING CONSENT MOTION FOR ENTRY OF PROTECTIVE ORDER

On September 4, 2025, Respondent, with consent of Complainant, filed a Consent Motion for Entry of Protective Order, attaching a proposed order. (Dkt. 16.) The motion states “a protective order is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive.” (Motion at 1.)

The Initial Order issued in this proceeding states that: “The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.” (Initial Order at 31.)

The proposed protective order is reasonable; however, confidential materials filed in the proceeding are addressed in the initial order, and its terms govern to the extent that the proposed protective order provides otherwise:

32. *Use in the proceeding* – If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.

(Initial Order at 7.)

Similarly, the initial order provides that entire transcripts of depositions may not be designated confidential when used in this proceeding, and its terms govern to the extent that the proposed protective order provides otherwise:

33. *Depositions* – Parties may not mark entire depositions as confidential. Parties should ask questions that may require confidential responses together, typically at the end of the deposition. Alternatively, parties may mark as confidential selected statements in a deposition prior to filing the deposition as an exhibit. Requests for confidential treatment of entire depositions should not be made and may be summarily rejected

(Initial Order at 7.)

Moreover, to the extent that the proposed protective order refers to filing dates that conflict with the Commission’s Rules, the Rules shall apply. Contrary to the proposed protective order at paragraph 4(c), when confidential versions of documents are filed with the Commission, a public version of the document must be filed within three (3) business days thereafter. 46 C.F.R. § 502.5(a)(2)(ii). Only the portions of documents containing confidential material may be redacted. 46 C.F.R. § 502.5(a)(2)(iii). In addition, contrary to the terms of the proposed protective order at paragraph 9(c), if a motion contesting a designation of confidentiality is filed, a response to the motion must be served and filed within seven (7) days of the motion. 46 C.F.R. § 502.71(b).

Finally, the undersigned lacks authority to rule on issues arising from this proceeding after the initial decision is entered notwithstanding any contrary provision in the proposed protective order.

Respondent has established good cause to enter the proposed protective order. Accordingly, the consent motion is **GRANTED AS MODIFIED HEREIN**, and it is hereby **ORDERED** that the protective order be entered as modified herein as an order in this proceeding.

MARY A. HERVEY -S Digitally signed by MARY A. HERVEY -S
Date: 2025.09.05 09:31:39 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge